

STATE OF IOWA
BEFORE THE BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF THE LICENSE TO PRACTICE AS A PSYCHOLOGIST OF ALLEN SILBERMAN, Ed.D., RESPONDENT.	} } } }	BOARD'S FINAL FINDINGS OF FACT, CONCLUSION OF LAW, AND ORDER
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The above captioned matter came on for hearing on July 10, 1986 at approximately 8:30 a.m. in the Conference Room of the Wallace State Office Building, Des Moines, Iowa. Those present at the hearing were for the Board of Psychology Examiners Gratia Gilbert, Ed.D.; Abigail Sivan, Ph.D.; Joan Grant; Darlene Blake, M.S.; Darrell Dierks, M.S.; and Phyllis Hansell, Ed.D. The State was represented by Assistant Attorney General, Rose Vasquez; the Respondent, Allen Silberman, Ed.D., was present at the hearing and represented by counsel Robert L. Horak, Attorney at Law and Dorothy L. Kelley, Attorney at Law. The hearing was conducted by Hearing Officer, Mark W. Wheeler.

STATEMENT OF THE CASE

Pursuant to the authority of Chapter 258A of the Code of Iowa and rules 140.210 thru 140.212 of the Iowa Administrative Code a disciplinary hearing was held in Des Moines to determine the status of the license of Allen Silberman, Ed.D., relative to the practice of psychology in the State of Iowa.

The charges at issue at the hearing relative to a disciplinary action were set out in the Notice of Hearing sent to Allen Silberman, Ed.D. There were four allegations (see Notice of Hearing for the specific charges). The hearing was a closed hearing with the concurrence of both the State's attorney and the attorneys for the Respondent.

The Board after reviewing all the evidence, testimony, documentation, and briefs submitted by the parties makes the following Findings of Fact, Conclusions of Law, Decision and Order.

BOARD RULING

The Respondent made a request at the hearing that the Board seal the record of the hearing. The Board after deliberation and consideration

of the Respondent post hearing brief, finds it has no jurisdiction to seal the record of the hearing. However, in accordance with Chapter 17A.3 of the Code of Iowa, the Board decided to de-identify the witnesses who participated in the hearing. This de-identification is to insure there is no violation of their personal or private rights. Witnesses are assigned a # according to order of testimony in the record.

FINDINGS OF FACT

The Board after having reviewed all the evidence, testimony, documents, and post hearing briefs submitted by both parties makes the following Findings of Fact. The Respondent, licensee, was alleged to have violated Iowa Board of Psychology Examiners rules dealing with:

1. Failure to direct a client to appropriate authorities with information regarding alleged sexual abuse of a minor child.
2. Failure to report a change of address within thirty days.
3. Failure to make proper arrangements for clients after having closed his professional practice.
4. Participation in sexual relations with a client.

It is the position of the Board that, in administrative disciplinary hearings, it is the burden of the State to demonstrate a preponderance of the evidence in support of the allegations as cited in the Notice of Hearing.

The Board, having reviewed the record and all testimony and documents, finds that there was a preponderance of the evidence that the licensee did:

1. Violate Iowa Administrative Code 470-140.212(14)(g)(1): failure to direct a client to appropriate authorities with information regarding alleged sexual abuse of the client's minor child.
2. Violate Iowa Administrative Code 470-140.212(9): failure to report a change of name or address within thirty days after it occurred.
3. Not violate Iowa Administrative Code 470-140.212(6): failure to make proper arrangement with clients after having closed or transferred professional practice.
4. Violate Iowa Administrative Code 470-212(7)(f): engaging in a sexual relationship with a client.

The licensee was not found to be a credible witness in the refutation of testimony against him presented at the hearing. Those witnesses testifying to the violations were credible, believable and persuasive in their positions with respect to the alleged violations except for the case of the violation dealing with failure to make proper arrangements for clients after closing a professional practice. The Board was persuaded there was a preponderance of evidence corroborating the allegations relative to the three allegations that were sustained.

CONCLUSIONS OF LAW

The Board of Psychology Examiners is charged with and has the authority under Chapter 258A.3(2) to act and take actions relative to a licensee who is found in violation of either its practice act or properly promulgated rules. The Board of Psychology Examiners is considered an expert body in the area of the practice of psychology and has the authority to exercise its discretion when determining what is or is not appropriate action regarding compliance with its practice act and rules promulgated as a result of the practice act or the authority in Chapter 258A of the Code of Iowa.

Relative to the violation of Iowa Administrative Code 470-140.212 (14)(g)(1), a psychologist has an obligation to make referrals to all the professional, technical and administrative resources that best serve the interest of clients. In particular in the area of child abuse the Board found that the witness #2 was persuasive in her testimony and corroborated the allegation that the licensee was made aware during client/psychologist sessions of alleged sexual abuse of a child and failed to direct witness to any other appropriate professional authorities or services that might best serve the needs of this client.

The Board, in addressing the alleged violation of Iowa Administrative Code 470-140.212(9): failure to report a change of name or address within 30 days after it occurs was substantiated on the record by testimony from witness #4. The testimony of the licensee was not persuasive that there was notification. In this case the licensee stating that it was by telephone call to the Board offices in Des Moines. The licensee was well known to all the staff of the Board's Des Moines office, any interaction either in writing or by telephone would have been recorded by Board employees. Further the licensee was aware of the fact that the Board was not aware of his current address. This is the result of continual information being sent

to the old address and being forwarded to the licensee at his new address. Therefore, a burden was placed on the licensee to come back and reassure or reconfirm that the Board had his new address. In as much as correspondence was being sent to his old address this would indicate to the ordinary licensee that the Board was not aware of his new address.

In respect to the allegation of violation of Iowa Administrative Code 470-140.212(7)(f) which prohibits acts consisting of...sexual intimidation or sexual relations between a psychologist and client, the Board, after hearing all the testimony presented, was persuaded by the testimony of witness #3 that such activities did take place between witness #3 and the licensee. The Board found witness #3 to be more persuasive and believable than the licensee in the licensee's testimony and in rebuttal of witness #3's testimony.

The Board, in reviewing the testimony, evidence and documentation presented relative to allegation of violation of Iowa Administrative Code 470-140.212(6): failure to make proper arrangement for former clients after having closed or transferred a professional practice, was not sustained. The licensee did make appropriate arrangements to notify all current clients and placed all his records in a secure place under the control of his CPA and made arrangements with another licensed psychologist to take any referrals that may have come relative to his current clients. This was persuasive and there was a preponderance which was substantial to deny a violation of this specific rule.

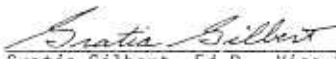
In conclusion it is the Board's position that there has been a demonstration of substantial evidence on a record that there is a preponderance of evidence that the licensee did violate the above cited rules; with the exception of the one rule that was not substantiated.

DECISION, FINAL DECISION
AND ORDER

As a result of the Findings of Fact, Conclusions of Law as found by the Board after reviewing all testimony, evidence and documentation presented; the Board hereby finds that the violations that were substantiated as cited above in the Findings of Fact and Conclusions of Law are of such significant nature and circumstance that the licensee should be subjected to disciplinary action. Therefore, it is the final decision of the Board of Psychology Examiners that the license of Allen Silberman, Ed.D. is hereby Revoked.

It is further ordered that this Revocation begin immediately upon signing of this final Decision and Order by the Board Representative.

Dated this 19th day of November, 1986.


Gratia Gilbert, Ed.D., Vice-Chairperson
For and on Behalf of the Board of
Psychology Examiners

copies to:
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P.O. Box 1157
Kennett Square, PA 19348-0436
CERTIFIED MAIL

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Rose Vasquez
Assistant Attorney General
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Des Moines, Iowa 50319

STATE OF IOWA
BEFORE THE BOARD OF PSYCHOLOGY EXAMINERS



IN THE MATTER OF THE LICENSE
TO PRACTICE AS A PSYCHOLOGIST
OF

Allen Silberman, Ed.D.
RESPONDENT

NOTICE OF HEARING

AND

STATEMENT OF CHARGES

TO: Allen Silberman, Ed.D.
P.O. Box 1157
Kennett Square, PA 19348-0436

You are hereby notified that a disciplinary hearing has been scheduled concerning your license to practice as a psychologist in the State of Iowa. The hearing will begin at 8:00 a.m., Thursday, July 10, 1986, in the first floor conference room, Wallace State Office Building, Des Moines, Iowa. You should be present at the hearing. Section 17A.12(3) of the Iowa Code provides if a party fails to appear at the hearing, the hearing may proceed and a decision made in the absence of the party. You may be represented by legal counsel, present evidence, and cross-examine witnesses. The authority for the hearing is Sections 258A.3 and 258A.6 of the Iowa Code and Board Rules 140.201 through 140.212.

The hearing will concern whether or not disciplinary action should be taken concerning your license to practice as a psychologist, because of the following alleged violations:

1. By engaging in sexual relations with a client on several occasions while she was actively involved in treatment and evaluation in violation of 470 Iowa Administrative Code §140.212(7)(f) which prohibits "acts consisting of the following: ...any sexual intimidation or sexual relationship between a psychologist and a client."

2. Failure to report a change of name or address within thirty days after it occurs in violation of 470 Iowa Administrative Code §140.212(9).

3. Failing to make proper arrangements for former clients after having closed or transferred your professional practice in violation of 470 Iowa Administrative Code §140.212(6) which states: "negligence by the licensee in the practice of the profession, which is a failure to exercise due care including negligent delegation to or supervision of employees or other individuals, whether or not injury results; or any conduct, practice or conditions which impair the ability to safely and skillfully practice the profession."

4. Failing to direct a client to the appropriate authorities with information regarding the alleged sexual abuse of the client's minor child, in violation of 470 Iowa Administrative Code §140.212(14) (g)(1) which states: "psychologists understand the areas of competence of related professions, and make full use of all the professional, technical, and administrative resources that best serve the interests of consumers. The absence of formal relationships with other professional workers does not relieve psychologists from the responsibility of securing for their clients the best possible professional service nor does it relieve them from the exercise of foresight, diligence, and tact in obtaining the complementary or alternative assistance needed by clients."

The hearing will be presided over the Board and will be conducted for the admission of evidence by Mark Wheeler, Hearing Officer, Iowa State Department of Health, Lucas State Office Building, Des Moines, Iowa 50319 (telephone 515/281-5737). If you are represented by counsel, the counsel is requested to file an appearance with the Hearing Officer. All other filings should be submitted to the Hearing Officer.

The attorney who will represent the State of Iowa is Rose A. Vasquez, Assistant Attorney General, Office of the Attorney General, Hoover Building, Des Moines, Iowa 50319 (telephone 515/281-6706 and 515/281-4068). Copies of all filings with the Board should

be submitted to Ms. Vasquez.

Dated at Des Moines, Iowa this 2nd day of June, 1986.

Gerald T. Jorgensen Ph.D. 6/2/86
Gerald T. Jorgensen, Ph.D, Chairperson
Board of Psychology Examiners and
Investigating Board Member in his
official capacity.

Restricted Certified Mail

I certify that a copy of the above
was deposited in the United States Mail,
Restricted Certified Mail Postage Prepaid,
on the 2nd day of June, 1986

Addressed as follows:

Allen Silberman, Ed.D.
P.O. Box 1157
Kennett Square, PA 19348-0436

Cheryl Brinkman